

## 25TRCV02474 25TRCV02474

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-07-15

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Case Number: 25TRCV02474 Hearing Date: July 15, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

ANDREW HUDSON, M.D.

;

Plaintiff,

vs.

OLEG

VOLKOV

, et al.;

Defendants.

Case

No.:

25TRCV02474

Hearing

Date:

July  
15, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1) DEFENDANT EUGENE STAVTSEV'S MOTION FOR SANCTIONS UNDER CCP § 177.5 FOR VIOLATION OF COURT ORDER OF JANUARY 12, 2026 IN PART OF PLAINTIFF'S FAILURE TO PAY SANCTIONS IN THE AMOUNT OF \$1,000 ON OR BEFORE FEBRUARY 12, 2026

(2)

DEFENDANT

EUGENE STAVTSEV'S MOTION FOR ORDER TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT'S FORM INTERROGATORIES, SET ONE, AND IMPOSING MONETARY SANCTIONS IN THE AMOUNT OF \$2,500 ON PLAINTIFF

MOVING PARTY: Defendant, Eugene Stavtsev

RESPONDING

PARTY: No opposition.

(1)

Defendant

Eugene Stavtsev's Motion for Sanctions under CCP § 177.5 for Violation of Court Order of January 12, 2026 in Part of Plaintiff's Failure to Pay Sanctions in the Amount of \$1,000 on or before February 12, 2026 is GRANTED in the reduced amount of \$250.00 pursuant to Code of Civil Procedure section 177.5.

(2)

Defendant

Eugene Stavtsev's Motion for Order to Compel Plaintiff's Further Responses to Defendant's Form Interrogatories, Set One, and Imposing Monetary Sanctions in the Amount of \$2,500 on Plaintiff is DENIED pursuant to Code of Civil Procedure section 1005, subdivision (a).

With respect to the motion for sanctions, the Court considers the moving papers filed on April 24, 2026, the notice of non-opposition filed on June 30, 2026, the proof of service filed on July 1, 2026, and the request for judicial notice filed on July 10, 2026.

With respect to the motion to compel further, the Court considers the moving papers filed on May 12 and 13, 2026, the proof of service filed on July 9, 2026, the request for judicial notice filed on July 10, 2026, and the notice of non-opposition filed on July 10, 2026.

## BACKGROUND

### Factual Background

On July 29, 2025, plaintiff Andrew Hudson, M.D., ("Plaintiff") filed a Complaint against defendants Oleg Volkov and Eugene Stavtsev (collectively, "Defendants"). The Complaint includes the following causes of action: (1) Personal Rights Pursuant to Civ. Code § 43; (2) Defamation Common Law and Pursuant to Civ. Code § 45 and Pursuant to Civ. Code § 46; (3) Defamation Per Se Libel Pursuant to Civ. Code § 45; (4) Defamation Per Se Slander Pursuant to Civ. Code § 46(1)(3)(5); (5) Assault and Threats to Kill Pursuant to Civ. Code § 1708; (6) Stalking, Harassment, Substantial Emotional Distress, Pursuant Civ. Code § 1708(b)(1)-(7); (7) Intentional Interference with Prospective Economic Advantage; and (8) Injunctive Relief.

On January 12, 2026, the Court granted Stavtsev's Special Motion to Strike as to all causes of action, except for the fifth cause of action for assault. (January 12, 2026 Minute Order, p. 10.) As a result, all claims against Stavtsev, other than the fifth cause of action for assault, were stricken. (January 12, 2026 Minute Order, p. 10.)

Additionally, on the same day, the Court granted Stavtsev's Motion to Compel Plaintiff's Responses to Form Interrogatories, Set One, and the Motion to Deem Requests for Admission Admitted Against Plaintiff. (January 12, 2026 Minute Order, p. 10.) Consequently, Plaintiff was "ordered to provide verified code compliant responses without objections on or before January 30, 2026" and to "pay monetary sanctions in the amount of \$1,000.00 to [Stavtsev] on or before February 12, 2026." (January 12, 2026 Minute Order, p. 10.)

On May 7, 2026, Plaintiff  
filed a Notice of Change of Address, notifying the Court and opposing parties  
that his new address is "State of California Confidentiality Address Program  
#2889, P.O. Box 1318, Sacramento, CA 95812."  
(Notice of Change of Address, p. 1.)

On May 13, 2026, the Court declared  
Plaintiff to be a vexatious litigant under Code of Civil Procedure section 391,  
subdivision (b)(1). (May 13, 2026 Minute  
Order, p. 9.)

#### Procedural Background

#### Motion for Sanctions

On April 24, 2026, Stavtsev  
filed the motion. On May 8, 2026, the  
Court continued the hearing to July 9, 2026.

On June 30, 2026, Stavtsev  
filed a notice of non-opposition. On  
July 1, 2026, Stavtsev filed a proof of service.

On July 9, 2026, the Court  
continued the hearing to July 15, 2026.

On July 10, 2026, Stavtsev  
filed a request for judicial notice. To  
date, no opposition brief has been filed.

#### Motion to Compel Further Responses

On May 12 and 13, 2026, Stavtsev  
filed the motion. On July 9, 2026, Stavtsev  
filed an untimely proof of service. On July  
10, 2026, Stavtsev filed a request for judicial notice and a notice of  
non-opposition. To date, no opposition  
brief has been filed.

## REQUEST FOR JUDICIAL NOTICE

Several

days after filing his moving papers, Stavtsev has filed a Request for Judicial Notice ("RJN"), requesting this Court take judicial notice of the following asserted facts:

1.

Plaintiff "was hired by Baptist Health South Florida in May 2026 (EXH A)[.]"

2.

Plaintiff "indicated in his recent filings that [he] has been unemployed for the last eight months in [his] opposition filed on June 30, 2026: (EXH B) ... and in [his] opposition filed on July 1, 2026: (EXH C)[.]"

The Court DENIES these requests. Pursuant to Code of Civil Procedure section 1005, subdivision (b), "all moving and supporting papers shall be served and filed at least 16 court days before the hearing[.]" and "all reply papers [shall be served and filed] at least five court days before the hearing." Stavtsev submitted this request on July 10, 2026, which is only three court days before the scheduled hearings. Consequently, the request to take judicial notice of the asserted facts is DENIED. To do so would unfairly prejudice the Plaintiff. Said facts were not submitted in a timely manner.

Furthermore, the Court notes that Plaintiff did not file an opposition brief in response to either motion. Exhibit B is Plaintiff's opposition to a motion for sanctions related to the Court order from February 11, 2026, not the January 12, 2026 Court order discussed in Stavtsev's motion for sanctions. Exhibit C is Plaintiff's opposition to Stavtsev's earlier motion to mandate electronic service. Given that Plaintiff did not file an opposition brief in response to either of the motions currently before the Court, the Court deems the request for judicial notice of these documents irrelevant. (See *People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 2.)

## MOTION FOR SANCTIONS

Legal Standard

“Every court shall have the power to ... compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein.” (Code Civ. Proc., § 128, subd. (a).) “A judicial officer shall have the power to impose reasonable money sanctions, not to exceed fifteen hundred dollars (\$1,500), notwithstanding any other provision of law, payable to the court, for any violation of a lawful court order by a person, done without good cause or substantial justification.” (Code Civ. Proc. § 177.5.) “[T]he term ‘person’ includes a witness, a party, a party’s attorney, or both.” (Code Civ. Proc. § 177.5.) “Sanctions pursuant to this section shall not be imposed except on notice contained in a party’s moving or responding papers; or on the court’s own motion, after notice and opportunity to be heard. An order imposing sanctions shall be in writing and shall recite in detail the conduct or circumstances justifying the order.” (Code Civ. Proc., § 177.5.)

“Civil Procedure section 177.5 requires only that a court find the person violated the order ‘without good cause or substantial justification.’ This does not require ‘a willful violation, but merely one committed ... without a valid excuse.’ ” (People v. Kareem A. (2020) 46 Cal.App.5th 58, quoting Seykora v. Superior Court (1991) 232 Cal.App.3d 1075, 1081.)

#### Discussion

Stavtsev requests that the Court impose sanctions amounting to \$1,500.00 against Plaintiff for failing to comply with the Minute Order issued on January 12, 2026, which mandated Plaintiff to pay monetary sanctions in the amount of \$1,000.00 to Defendant on or before February 12, 2026. (Motion, pp. 2:1-4.)

On January 12, 2026, the Court granted Stavtsev’s Motion to Compel Plaintiff’s Responses to Form Interrogatories, Set One, and the Motion to Deem Requests for Admission Admitted Against Plaintiff. (January 12, 2026 Minute Order, p. 10.) Consequently, Plaintiff was “ordered to ... pay monetary sanctions in the amount of \$1,000.00 to [Stavtsev] on or before February 12, 2026.” (January 12, 2026 Minute Order, p. 10.) Plaintiff was present at the hearing and was therefore aware of the Court’s order. (January 12, 2026 Minute Order, p. 10.) Stavtsev’s counsel reports making multiple attempts to contact Plaintiff to encourage compliance with the Court’s order. (Declaration of Oleg Volkov (“Volkov Decl.”), ¶ 2.) However, Plaintiff did not respond to any of

these communications. (Volkov Decl., ¶  
4.) Therefore, the Court concludes that  
Plaintiff disregarded the Court's order without providing an explanation.

Here, the Court finds that  
Plaintiff has violated the Court's order without good cause or substantial  
justification. As such, Stavtsev's motion  
for sanctions, in the reduced amount to \$250.00 is GRANTED.

## MOTION TO COMPEL FURTHER RESPONSES

### Legal Standard

#### Code of Civil Procedure

section 2030.300 provides that "[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that" the responses contain: (1) answers that are evasive or incomplete; (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response; or (3) unmerited or overly generalized objections.

(Code Civ. Proc., §2030.300, subd. (a).) "[N]otice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories." (Code Civ. Proc., §2030.300, subd. (c).) Moreover, "[a] motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., §2030.300, subd. (b)(1).)

Additionally, "Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Code of Civ. Proc., § 2017.010.) For discovery purposes, information is regarded as relevant "if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating

settlement thereof.” (City of Los Angeles v. Superior Court (2017) 9 Cal.App.5th 272, 288.)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §2030.300, subd. (d).)

Under Code of Civil Procedure section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd. (a).) “Misuses of the discovery process include ... (d) Failing to respond or to submit to an authorized method of discovery. .... (h) Making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery.” (Code Civ. Proc., § 2023.010, subds. (d), (h).) “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

## Discussion

Stavtsev moves to compel Plaintiff to provide responses to Form Interrogatories, Set One, without objections, in accordance with the Court’s order issued on January 12, 2026. (MTCF, pp. 5:23-7:11.) Additionally, Stavtsev seeks \$3,500 in monetary sanctions incurred as a result of filing this motion. (MTCF, p. 7:12-26.) However, the motion is DENIED due to uncertainty regarding the service of the motion.



California Rules of Court stipulate that “[p]roof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.” (Cal. Rules of Court, rule 3.1300(c).)

Given that the motion is scheduled to be heard on July 15, 2026, Stavtsev was required to file his proof of service by July 8, 2026. However, he submitted the proof of service on July 9, 2026, which is one court day past the established deadline.

The Court typically exercises its discretion to consider a proof of service filed a couple of days late, particularly when the opposing party files an opposition brief. (See Cal. Rules of Court, rule 3.1300(d).) However, in this case, there is significant dispute as to whether the parties are serving each other in a timely manner or at all. Consequently, the Court declines to accept late proofs of service that may potentially prejudice an opposing party, particularly in the absence of an opposition brief.

Consequently, clear evidence is absent that the motion was served on Plaintiff, it is DENIED along with the request for monetary sanctions.

Notwithstanding the denial, the Plaintiff’s obligation to comply with the Court’s order dated January 12, 2026, remains in full force and effect: to provide verified, code-compliant responses without objections as mandated.

## ORDERS

### 1) Defendant

Eugene Stavtsev’s Motion for Sanctions under CCP § 177.5 for Violation of Court Order of January 12, 2026 in Part of Plaintiff’s Failure to Pay Sanctions in the Amount of \$1,000 on or before February 12, 2026 is GRANTED in the reduced amount of \$250.00.

### 2) Plaintiff

Andrew Hudson, M.D., is ordered to pay the Court \$250.00 on or before August 12, 2026.

3) Defendant

Eugene Stavtsev's Motion for Order to Compel Plaintiff's Further Responses to Defendant's Form Interrogatories, Set One, and Imposing Monetary Sanctions in the Amount of \$2,500 on Plaintiff is DENIED.

4) Stavtsev

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 15, 2026

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Tamara

Hall

Judge

of the Superior Court